

Sharmila Prasad v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 25 September 2024 · 2024:AHC:157204-DB · Writ-C No. 28445 of 2024 · **Writ disposed; competent authority to consider the connection application in accordance with law within three weeks after hearing stakeholders.**

HEADNOTE

Clause 4.4 of the Electricity Supply Code 2005, read with Annexure 4.2 and Annexure 4.3, requires either the owner's consent or, in its absence, an indemnity bond from the lessee, tenant or occupier. Want of landlord consent is not a ground to refuse a new connection. The pending application was left to the competent authority to consider in accordance with law.

FACTUAL SUMMARY

Sharmila Prasad, claiming residence at 332 Daragahiya Nandnagar, Ward No.8, Khorabar @ Soobazar, Post Kunraghat, District Gorakhpur, sought a new electricity connection amid a dispute over ownership of the premises. Application No.1016218897 was allotted on 05.08.2024, but no connection was given. She petitioned the Allahabad High Court for a mandamus directing respondent no.4 to supply electricity in her name at the premises.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier new connection on indemnity in lieu of owner consent

HOLDING

A lessee, tenant or occupier applying for supply cannot be refused a connection merely for want of the landlord's consent if an indemnity bond is furnished. Clause 4.4 read with Annexure 4.2 and Annexure 4.3 of the Electricity Supply Code 2005 provides for either the owner's consent letter or, in its absence, an indemnity bond. The writ was disposed of directing the competent authority to consider the petitioner's application, if not yet done, in accordance with law within three weeks after hearing parties having stake. ¶ 3-4

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Clause 4.4 of the Electricity Supply Code 2005, read with Annexure 4.2 and Annexure 4.3, requires either the owner's consent or, in its absence, an indemnity bond from the lessee, tenant or occupier. Want of landlord consent.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING NEW-CONNECTION APPLICATION

Remitted to the competent authority for decision in accordance with law after hearing stakeholders. ¶ 4

NOT DECIDED — OWNERSHIP OF THE PREMISES

A title dispute was alleged; the Court did not adjudicate it. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor vs. U.P. Power Corporation Ltd. and others</i> Writ C No. 28295 of 2014			3	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.